

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8b-2ae2-cakj
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-8140

Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

I am here to rally against copyright exemptions for Generative AI. There are several reasons:

The works are stolen: The models base their output on the works of artists of all mediums (visual, literary, musical, etc.) who did not consent to it. Sometimes it recreates a near identical piece of work to the artist's original. What would normally involve paying an artist for their work instead goes to a corporation selling that work they stole.

AI art is explicitly a way to bypass paying artists for work they did: Generative AI companies are arguing in court that they shouldn't have to pay copyrights/royalties to the artists their models trained on because it would mean that their companies would be unprofitable. In other words, nearly all the models can not function if they pay artists for the work they used. Which is exploitation. Training random internet images is also making people pay money for art that was supposed to be free and credited to the artist. Only open source models trained on explicitly public domain works, or models trained on art that they paid the laborers for, would be ethical. Both are few and far between.

AI art destroys artists' lives: I know many artists, who make a living on producing original pieces for customers. Unfettered AI has put many of their livelihoods in jeopardy. Some have quit art all together, many others have had severe mental health crises. What message does giving an exemption give American artists? Our painters? Designers? Musicians? Digital artists? Our Authors? "Your labor should be free; you do not deserve pay; your hard work, talent, nuance, connection, and perspective are meaningless and replaceable". It's a losing message.

We lose global presence and prestige: much of our global soft power comes from having abundant varieties of art. AI art doesn't create, it rehashes. Who will look at American art if what we have to offer is flooded with waste that no one cares about? Will America seem cutting edge when all it can do is give its citizens and the world the same reheated dish? Will they support an America willing to sacrifice some of its best exemplars so that a few tech companies that are largely disliked around the world make a couple bucks? This is an abdication of presence on a global scale.

AI doesn't create, it regurgitates, and we lose our edge: AI makes "art" from the ground up pieces of human artist works. But it makes nothing new; it can't. it can only work off of styles and ideas of what came before. It's just pattern recognition of what's *already* been innovated. If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How could Americans possibly make a living doing these things? They can't. Why would we as a country sacrifice our ability to innovate? That's one of our strongest American assets! Our innovations are vital to our economy, in art included.

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Their work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. They are very useful in certain applications and we should put our efforts there. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.